BRIAN MUDUMI
and
CLOUD AFRICA AND BUSINESS INVESTMENT NETWORK (PRIVATE) LIMITED
versus
METRICAL ENTERPRISES (PRIVATE) LIMITED
and
SHERIFF OF THE HIGH COURT OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MANDAZA J
HARARE, 9 March, 18 March and 15 July 2026

Opposed Court Application

P R Zvenyika, for the applicants
R T Mutero, for the 1st respondent
No appearance for the 2nd respondent

MANDAZA J: This is a court application for rescission of a default judgment entered against the applicants on 10 July 2025 under case number HCH2212/25. The application is opposed.

The brief facts of the matter are that, sometime in January 2023, the first respondent, who was desirous of purchasing a 20-cubic-metre dump truck, was referred to the first applicant by a Chinese company. The dump truck was to be procured through the second applicant, a company in which the first applicant is a director and which is engaged in the business of importing motor vehicles.

The first respondent and the first applicant thereafter concluded a verbal agreement under which the first respondent would deposit the purchase price of the dump truck into the second applicant's bank account. Pursuant thereto, the first respondent deposited the sum of ZWL32 479 077-40, which at the material time was equivalent to US$34 000-00.

The first respondent was advised that the dump truck would be delivered eight (8) weeks after payment of the purchase price to the supplier. However, the second applicant experienced delays in acquiring foreign currency at the Reserve Bank of Zimbabwe (RBZ) auction, a fact duly communicated to the first respondent by the second applicant's employees.

The first respondent was subsequently advised that the dump truck had arrived at the Dar es Salaam port and that he was required to meet the costs of clearing it, whereupon he became evasive. He refused to make payment and demanded a refund, further contending that, as the truck had arrived after the elapse of eight weeks, he was no longer interested in taking delivery thereof.

The first respondent thereafter lodged a police report against the applicants, who were charged with fraud and duly convicted in the Magistrates' Court. The applicants noted an appeal against both conviction and sentence to the High Court, which appeal succeeded, resulting in the conviction and sentence being set aside. Following the success of the appeal, the first respondent issued summons against the applicants, and a default judgment was subsequently granted against them. The first applicant contends that he never saw the summons and that this accounts for his failure to enter an appearance to defend.

In his founding affidavit, the first applicant avers that he only became aware of the default judgment upon reading an online newspaper publication (heraldonline.co.zw) on 4 August 2025. Upon further enquiry with his legal practitioners, he learnt that the Sheriff's return of service indicated that the summons had been served on 5 June 2025 by affixing it to a letterbox at one of his residential addresses in Masvingo.

The application is opposed by the first respondent, who raised three (3) points *in limine* at the hearing. It was submitted, firstly, that the application is fatally defective in that there is no judgment against the second applicant, and it therefore cannot competently apply for rescission. Secondly, it was submitted that the applicants failed to seek condonation for their non-compliance with r20 (2), (3) and (7) of the High Court Rules, 2021. Thirdly, it was submitted that the answering affidavit is irregular in that it seeks to introduce new issues to which the first respondent is unable to respond.

It was submitted that the default judgment lies against the first applicant only, and that no judgment exists against the second applicant in the High Court. Accordingly, it was contended that the second applicant cannot seek rescission of a judgment that is non-existent, rendering the application fatally defective and liable to be struck off the roll on a punitive scale.

It was further submitted that the application is fatally defective by reason of the applicants' failure to seek condonation for their non-compliance with r 20(2), (3) and (7), and that they ought first to have applied for the upliftment of the bar operating against them.

It was submitted, moreover, that a letter had been addressed to the applicants on 4 November 2025 advising them that the application was fatally defective and that they ought to apply for the upliftment of the bar operating against them, an invitation they declined to take up despite having undertaken to do so. It was submitted that a bar may only be removed by consent or by application, and that the bar accordingly remains operative against the applicants.

It was contended that there existed a need for the applicants to file an application for the upliftment of the bar, that the application ought not to be before the court in the absence of any attempt to seek indulgence, and that no condonation had been sought. The court was accordingly urged to dismiss the application on the basis that, where a party files an incorrect application, no application properly exists before the court, and the application ought therefore to be struck off the roll on an attorney-and-client scale.

It was further contended on behalf of the first respondent that the answering affidavit contains annexures introducing new evidence, namely the attachments at pages 37, 38, 39 and 40, and further at pages 41 to 44, in respect of which the first respondent had no opportunity to respond or furnish context, thereby rendering the answering affidavit irregular. Reliance was placed on *Njanike Construction (Pvt) Ltd* v *LaFarge Cement Zimbabwe Ltd* HH24/22 at pages 4–5, where it was held that no new evidence ought to be introduced by way of an answering affidavit. On this basis, it was submitted that the answering affidavit is irregular and that the matter ought to be struck off the roll.

In response, counsel for the applicants submitted that it is common cause that the applicants failed to enter an appearance to defend, and that the Rules provide that default judgment will be entered in such circumstances. It was submitted that the court ought to have regard to the fact that the second applicant was cited as a party to the summons and that it is likewise common cause that the second applicant entered into a contract with the first respondent. It was accordingly submitted that the application is not fatally defective, in that the second applicant is a party to the High Court judgment.

On the question of the upliftment of the bar, it was submitted that the point is misconceived, as a bar would only have operated had the applicants failed to file pleadings and thereby become barred; the applicants, however, already have a default judgment entered against them.

With regard to the letter addressed to the applicants calling upon them to regularise their application, counsel for the applicants conceded that the letter had indeed been written,

but submitted that it was filed and received only on the day of the hearing, and that the applicants did not respond to it, holding the view that it was misplaced.

On the question of new evidence, it was submitted that the evidence in question relates to the applicants' acquittal and cannot properly be classified as new. It was submitted that the first respondent does not dispute the fact of the applicants' acquittal, and that the invoice or receipt in question cannot be regarded as new evidence, it being common cause that the respondent paid a sum of money to the applicant. It was further submitted that the emails at pages 38–39 cannot be considered new evidence, constituting merely examples of communications between the parties; that the bank document at page 40 confirms that the truck was purchased; and that the documents at pages 41–44 evidence the State's admission that there was no criminal liability. Counsel reiterated that none of the aforementioned documents can properly be classified as new evidence.

In reply, the first respondent maintained that no judgment exists against the second applicant in the High Court, liability against the second applicant having been established only in the Magistrates' Court. As regards the letter, it was reiterated that the same was served on 4 November 2025, and that the bar operating against the applicants remains extant, its existence not being cured by rescission. It was further submitted that the attachments in question ought properly to have formed part of the founding affidavit.

I will now turn to deal with the points *in limine*. It was submitted that the application is fatally defective for non-compliance with Form No. 23, as read together with r27 (1) of the High Court Rules, 2021. r27 (1) of the High Court Rules, 2021 is couched as follows:

> "A party against whom judgement has been given in default, whether under these rules or under any other law, may make a court application, not later than one month after he has had knowledge of the judgement for the judgement to be set aside, and thereafter the rues of court relating to the filing of opposition, heads of argument and the set down of opposed matters, if opposed, shall apply."

The first respondent submitted that Form 23 of the High Court Rules, in respect of a r27(1) application, is required to be filed only by an applicant against whom default judgment was entered, and that no judgment was sought or granted against the second applicant. To put matters into proper perspective, I deem it apposite to reproduce the order of the court in case number HCH2212/25, in terms of which default judgment was granted per MAMBARA J. The court order appears on page 8 of the consolidated record and is marked annexure 'A'. The operative part thereof reads as follows:

1. It is hereby declared that the first respondent shall be personally liable, without limitation of liability, to pay applicant for the debt or liability incurred by second respondent to applicant in terms of section 68(3) of the Companies and Other Business Entities Act [*Chapter 24:31*].
2. The first respondent shall pay the plaintiff the sum of US$34 000.
3. The first respondent shall pay interest at the prescribed rate of 5% per annum, from date of demand to date of final payment, both days inclusive.
4. The first respondent shall pay applicant's costs of suit on an attorney and client scale.

It is manifest that the order is directed against the first respondent, Brian Mudumi, who is cited as the first applicant in these proceedings, and that no judgment was sought or granted against the second applicant. Accordingly, the point *in limine* is upheld, and on that basis alone the application is rendered fatally defective.

I deem it necessary, however, to comment on the averment that the applicants employed an incorrect form. Had the point *in limine* been predicated solely on the use of a wrong form, I would not have upheld it. In *Trans-African Insurance Co Ltd* v *Maluleka* 1956 (2) SA 273 (A), the court held that technical objections to less than perfect procedural steps should not be permitted, in the absence of prejudice, to interfere with the expeditious and, if possible, inexpensive determination of cases on their real merits.

It was held by ROBINSON J, in *Intercontinental Trading P/L* v *Nestle Zimbabwe P/L* 1993 (1) ZLR 21 (H), that "only an antiquarian or a niggling academic out of touch with reality" ought to found an objection upon so frivolous a ground. In *Kudakwashe Maponga* v *Duduzile Gumede and Another* 23-HB-070, the court proceeded to determine the matter on the merits notwithstanding the contention that the wrong Form 25 had been used in place of Form 23. This court has accordingly held that, in appropriate cases, it may proceed to hear a matter notwithstanding the use of an incorrect form. In *casu*, however, the difficulty transcends that consideration, in that the second applicant does not feature at all in the default judgment granted.

Having upheld the preliminary point that the application is defective because the second applicant should not have been cited, I will not proceed to consider the other preliminary points. The application is fatally defective, and it cannot be resuscitated. It is trite that a court should not proceed with a matter once it makes a finding that the application is fatally defective. It was held in the matter of *Ndlovu L* v *Manwere NO and the State* 26-HH-079 per TAKUVA J, that;

> "Once an application is declared fatally defective, a court should not proceed to rule on its merits. Doing so is internally contradictory and a gross procedural irregularity."

In that case, the court had made a finding that the application was fatally defective but went on to entertain the merits.

A finding that an application is fatally defective necessarily means that there is no application before the court. A fatal defect is one that is incurable and terminates the proceedings. The same point was reiterated in *Vanledge Investments P/L and Ors* v *Chemical Procurement Services* 24-SC-005, per BHUNU JA, where the court held that:

"It is trite that where an application is fatally defective it is a nullity that must be struck off the roll."

On costs, it is trite that the general rule is that costs follow the event. That means the losing party usually pays the successful party's reasonable legal costs. It is trite that costs are within the court's discretion. The position is neatly stated in the case of *Ferreira* v *Levin N.O. and Others* 1996 (2) SA 984 (CC) as follows:

> "The Supreme Court has, over the years, developed a flexible approach to costs which proceeds from two basic principles, the first being that the award of costs, unless expressly otherwise enacted, is in the discretion of the court and the second that a successful party should, as a general rule, have his or her costs."

See also *Mutunhu* v *Crest Poultry Group (Pvt) Ltd* 17-HH-399.

I am not inclined to depart from the general position, and I am of the view that costs on a higher scale are justified in the circumstances of this case. The first applicant claims that he did not see the summons, yet he subsequently admitted that the summons had indeed been served at one of his residential properties in Masvingo. I do not consider that the first applicant was candid with the court in this regard.

If the summons were served at one of his residential properties, whose fault, then, is it that he did not see them? The first respondent effected service in terms of the law. I accordingly hold that the first applicant was in wilful default. Wilful default was defined in *V. Saitis and Co (Pvt) Ltd* v *Fenlake (Pvt) Ltd* 02-HH-065 per CHINHENGO J as follows:

> "A willful default connotes deliberateness in the sense of knowledge of the action and its legal consequences, and a conscious and freely taken decision to refrain from giving notice of intention to defend, whatever the motivation for this conduct might be."

In *Simbi* v *Simbi* S-164-90, willful default was defined as,

> "Wilful default occurs when a party, with the full knowledge of the service or set down of the matter, and of the risks attendant upon default, freely takes the decision to refrain from appearing."

Accordingly, I make the following order:

The application is hereby struck off the roll, with costs on an attorney-client scale

MANDAZA J: ……..

Muchirewesi and Zvwnyika, applicants' legal practitioners
AB and David legal practitioners, first respondent's legal practitioners